
2024

CONSTITUTION OF
THE RICE FEDERATION, GHANA

ARTICLE 1

Name and Registered Address

The name of the organization shall be the "Rice Federation, Ghana, to be abbreviated as "RFG".

ARTICLE 2

Mission

The Mission of the RFG:

To be the representative, advocacy, lobby, strategy, coordinating, training and research body of the rice industry and other related service providers and stakeholders in the rice industry by facilitating and enhancing stakeholder cooperation for the benefit and growth of the industry.

ARTICLE 3

Vision

The Vision of the RFG is:

To build a resilient, sustainable rice industry that has a measurable positive impact to national development and in the lives of stakeholders in the industry.

ARTICLE 4

Aims

The aims of the Group shall be to:

1. Help players in the rice value chain secure markets and operate profitably
2. Build standards in the industry for the growth and expansion and acceptance of locally grown rice in Ghana.
3. Help regulate prices of rice.
4. To promote the betterment of individuals and organisations operating in the rice value chain in the attainment of their economic and social goals.
5. Prepare producers, marketers and millers and all players in the rice value chain for restrictions in rice importation and how they can take advantage
6. Work with government to create policies that make a difference in the industry and the lives of players in the rice value chain.
7. To conduct educational and research projects for the benefit of farmers
8. To be the platform to provide dialogue and agreement amongst stakeholders in the rice value chain.
9. To promote and secure legislation and other forms of government action for the benefit of farmers.
10. To provide services for its members consistent with its objects and work jointly with any other persons or organizations for the attainment of its objects.

11. To conduct projects for the benefit of members in the development of markets for and marketing of their products and services.

ARTICLE 5

The Board of Directors

- (1) There shall be a Board of Directors of the Federation comprising 6 members; 5 of whom shall be validly elected at a special meeting called for that purpose and the President of the Federation who shall be a non-voting member of the board.
- (2) A lawyer seconded from the RFG's solicitors shall be the secretary to the board.
- (3) The term of office of the board shall be one year renewable.
- (4) The board shall meet at least once every quarter.

ARTICLE 6

Composition of the Board

Board membership positions shall be filled and be representative of the various rice growing enclaves: Currently the enclaves are Asutsuare/Akuse and Avalavi.

- (a) Asutsuare/Akuse;
- (b) Avalavi
- (c) Secretary to the board
- (1) {d} Organizing Secretary
- (d) President of the Federation

ARTICLE 7

Co-opted Members of the Board

- (1) The board may co-opt persons as advisors to the board who shall exercise no voting rights and be present at select meetings.
- (2) The advisory members so appointed shall not exceed three (3) in number and their tenure shall not exceed the tenure of the appointing board or may be present for deliberations at a single meeting.

ARTICLE 8

The board of directors shall be the policy-making body. It shall be the duty of the board to interpret into action decisions made at the Annual General Meetings.

Functions of the Board of Directors

The Board of Directors shall perform the following functions:

1. Provide general policy direction for the guidance of the Executive Management Secretariat.
2. Exercise oversight responsibility over the running of the Executive Management Secretariat.

3. Approve new categories for membership and exercise disciplinary and oversight control over the Executive Management Secretariat and all members of the Federation.
4. Approve the annual budget and expenditure of the Executive Management Secretariat.
5. Fix annual subscription fees and membership requirements for all members.
6. Raise funds for projects of the Federation by requesting members to make financial contributions other than annual membership subscriptions.
7. The board shall, after each Annual General Meeting, fix the remuneration to be paid to the elected officers and directors of the union during their term of office.
8. Attend all AGMs and special AGMs.

Quorum & Meetings of Board.

- (1) A quorum of the board shall consist of 2/3 of the number of board members present at the previous board meeting, not to be less than ½ of the board positions filled plus one.
- (2) Meetings - How Called. The secretary of the union shall call a meeting of the board whenever requested to do so by the president or by the executive or by a majority of the directors. Such meeting shall be called by forwarding to each member of the board a written notice giving the time, date and place of the meeting and such notice shall be sent at least 14 working days before the date fixed for the meeting.
- (3) Meetings may be organized online and participants join via video link. Such meetings will need to be recorded and a copy kept. When such meeting is a conference call or other form of technology that allows board members to be in diverse locations, connecting into the meeting will be classed as permission.

ARTICLE 9

Elections and Nominations to the Board of Directors

Board of Directors' membership positions shall be filled as follows:

- (1) There shall be elections to the Board of Directors every years.
- (2) The Board shall also nominate a Chairman.
- (3) The Chairman shall chair all meetings of the Board or in his/her absence another member appointed by the Board.
- (4) A lawyer provided by the RFG's solicitors shall be the secretary to the board.
- (5) Elective Board of Directors positions shall be contested at an Annual General Meeting (AGM) called for that purpose.
- (6) The provisions of the Companies Act, 2019 (Act 992) shall apply to meetings of the Board of Directors.

ARTICLE 10

Board Vacancies.

A vacancy has occurred on the board if a current member fails to attend two consecutive meetings of the board after being given five (5) days prior notice of such meetings and the member has not given a reasonable excuse to the board Chairman in writing.

ARTICLE 11

Filling Board Vacancies.

Where a vacancy occurs on the board due to whichever means resignation, expulsion, expiration of a term.

- (1) An emergency Annual General Meeting shall be called not later than one (1) month after the occurrence of such vacancy for the sole purpose of a bye-election to fill that vacancy at the level of membership where the vacancy occurs.
- (2) No elections shall be held to fill board vacancies that occur less than six (6) months to the expiry of a current board term.
- (3) Where a vacancy on the board occurs less than six (6) months to the expiry of the current board term the board shall appoint a person from the membership level where the vacancy occurs.

ARTICLE 12

Standing Committees

The board may elect from among its members and from individual members of the Federation to constitute committees as it may deem necessary to properly fulfil the functions of the Federation, provided, however, that the decisions of such committees shall be subject in consultation with the Executive Management Secretariat to the approval of the board.

- (1) The board may set up the following standing committees of the Federation
 - (a) Technical Committee
 - (b) Finance and Budget Committee
 - (c) Audit and Risk Committee
- (2) The board may also set up any other committees as it may from time to time determine appropriate.
- (3) For purposes of this article, the word 'technical' means any subject matter peculiar to a specific member category of the Federation or requiring expert knowledge.

ARTICLE 13

The Executive Management Secretariat

- (1) There shall be an Executive Management Secretariat headed by a President who shall be responsible for the day-to-day running of the Secretariat.
- (2) The President shall be appointed by the Board under an employment contract subject to the Labour Act (Act 651).
- (3) The Secretariat shall be staffed as may be requested by the President and approved by the Board of Directors.

ARTICLE 14

Duties of the President

The Duties of the President shall include:

- (1) Serving as the Chief Executive of the Federation and overseeing the day-to-day administration.
- (2) Serving as a non-voting member of the board.
- (3) Liaising with and implementing all policy directives given by the Board.
- (4) Organizing board elections and preparing guidelines to govern the conduct of such elections.

- (5) Organizing Annual General Meetings for all members and preparing guidelines to govern the conduct of such elections.
- (6) Representing the public face of the Rice Federation.
- (7) Keeping records of all activities and records of the Federations finances.
- (8) Making public announcements, sending out notices of meetings and events.
 - a. Keeping records of the Federations funds, accounts and membership.
- (9) Publishing the list of members in good standing annually in accordance with criteria under this constitution.
- (10) Receiving members' complaints, collating them and presenting them to the board.
- (11) Receiving members' complaints, collating them and devising relevant strategies in consultation with the board and liaising with relevant stakeholders to resolve them in the interest of the rice industry.
- (12) Steering the Federation as a representative advocacy, lobby, strategy and research body of the rice industry and enhancing stakeholder cooperation in the rice industry.

ARTICLE 15

Annual General Meetings (AGMs)

There shall be Annual General Meetings of the RFG.

1. AGMs shall be held once a year but Extra-Ordinary General Meetings may be held at the request of the Board acting in consultation with the Secretariat.
2. Notwithstanding articles 15(1) and 15(2), special meetings of the RFG may be convened at any time by the President upon receipt of a requisition in writing, signed by not less than fifty percent plus one of the members of the RFG.
3. Where a special meeting is called under notice of time and place of any such special meeting shall be given to each member of the RFG and the notice shall state the objective of the meeting. No business shall be transacted at any special meeting other than that specified in the notice.
4. AGMs shall be attended by each registered member in good standing. In the case of organizations representatives may come with an authority letter from their organization stating they are employees of such organization, how long they have worked at the organization and their authority to vote on behalf of said organization
5. The Chairman of the Board of Directors shall chair all AGMs or in his absence, another member of the board so nominated by the board shall act as chair.
6. At each meeting, minutes shall be written by the secretary to the board or any person authorized by the chairman to do so. The minutes of meetings will be signed by the chairman, board members present and selected representatives of individual members.

ARTICLE 16

Membership Dues

- (1) The quantum of dues and the manner of payment shall be determined by the Board.
- (2) The board shall determine what sanctions apply to delayed payment of dues by a member.

- (3) In addition to membership dues, members may be required to make financial contributions or assist in fundraising or generating funds from time to time in respect of projects approved by AGMs.

ARTICLE 17

Prospective Membership

The Federation shall have no political affiliation and shall be non-partisan in politics and free from racial, religious and political discrimination. Membership shall be available to anyone without regard to gender, race, nationality, disability, sexual preference, religion or belief. Membership shall be open to any person over 18 or any organization that is interested in helping the Federation to achieve its aims, vision and mission and is willing to abide by the rules of the Group as agreed by the Board of directors from time to time.

- (1) Membership of the Federation is open to all individuals, organizations involved in the farming, marketing, processing, distribution, trading and other related service companies, and allied industry organizations.
- (2) Incorporated and qualified companies wishing to become members of the Rice Federation shall file a written membership application at the Executive Management Secretariat.
- (3) The Executive Management Secretariat shall, in consultation with the Board, approve a membership application not exceeding 30 days of such application having been received and after satisfying itself that such a prospective applicant meets all membership requirements.
- (4) All applications for membership shall be in such form as shall be from time to time determined by the Executives and Board of the Ghana Rice Federations.
- (5) Each member shall, upon being accepted into membership, receive a unique membership identification as well as other means of identification in such form and in such manner as may from time to time be determined by the Executive Management Secretariat.
- (6) The membership period shall be one year from the date of the person becoming a member, provided, however, that the executive may initiate a longer period of membership, subject to the approval of the board.

ARTICLE 18

Categories of Membership

The following categories of members are hereby created:

Category A – Individuals directly involved in the rice industry

Category B – Organizations directly involved or having subsidiaries involved in activities involving rice production, trading, processing, marketing, distribution

Category C – Organizations with products related to involved or having subsidiaries involved in activities involving rice production, trading, processing, marketing, distribution

Category D – Farmer Based Organizations, CSOs, NGOs, Foundations interested in advancing the interest of the rice industry

Category E – Individuals interested in advancing the interest of the rice industry

ARTICLE 19

Membership or Board cancellation

(1) Membership will be cancelled:

- a. If the Federation or a member that is an organization winds up or has been declared bankrupt.
- b. Upon written registered notice by a member opting not to be a member.
- c. By the AGM, in case the member does not fulfill its obligations as laid down in the constitution or is acting against this constitution or any decision taken by:
 - i. The Board of Directors;
 - ii. The Secretariat under the authority of the Board;
 - iii. The Annual General Meeting of the Federation.

- (2) The membership of a member acting contrary to the Constitution and Bylaws may be suspended by the executive for a period of two weeks. Within this period a committee (comprising members in good standing) must determine if there will be an extension or lifting of the suspension.
- (3) A copy of the report by this committee will be submitted to both the board and the Executive Management Secretariat and a response communicated in two weeks to the suspended member.
- (4) A member acting contrary to the Constitution and Bylaws may be expelled from membership by the board, provided, however, that before any motion of expulsion is put to a meeting that written notice shall have been forwarded to the offending party stating clearly their offences and the reason for expulsion.
- (5) Any member so expelled from membership by the board may appeal to the next annual convention or general meeting of the Federation. The convention shall establish a committee of three persons, who are not directors of the federation, who shall investigate the cause of such expulsion and shall confirm such expulsion or reinstate such member on such terms as they deem just.
- (6) Any member who fails to pay membership dues within 60 days of the date of expiration of membership or fails to update or inform the federation of their current contact details and location 60 days after expiration of their membership shall cease to be a member forthwith.
- (7) A board member who has been found guilty of criminal intent or actions or has been suspended by the Office of the Registrar General.
- (8) Membership cancellation initiated by the Board and the Secretariat must be endorsed by members of the AGM.
- (9) Notice of Membership cancellation shall be by registered letter only. A membership cancellation endorsed by the AGM becomes effective immediately.
- (10) If membership is cancelled as aforementioned, membership fee shall not be reimbursed to the affected member. In case of membership cancellation under article 19 (1) (a), such a member shall pay to the Chamber all financial obligations due and owing at the time of such cancellation.

ARTICLE 20

Financial means

- (1) It shall be the duty of the financial head/Treasurer to receive all funds of the Federation, and to deposit same in such bank or credit union as the Board of Directors and Executive Management Secretariat may direct. The treasurer shall keep proper books of account, and furnish full and complete information on all matters dealt with whenever called upon to do so by the executive, board of directors and at the AGM. A duly audited statement of the financial affairs of the Federation shall be presented at the annual convention/AGM of the Federation.
- (2) The financial means of the Rice Federation shall be any or all of the following:
- (3) Membership subscriptions and contributions, sponsorships, grants, receipt and credits, contributions from members when the federation facilitates a transaction.

ARTICLE 21

Voting

- (1) Decisions on general matters at the AGMs and Extra-Ordinary AGMs shall be taken by a simple majority vote of members attending and voting at the same time except that a 2/3 majority vote shall be required for decisions on special matters to be taken.
- (2) For purposes of article 21 (1), special matters include any matters of discipline of members, increases in membership subscriptions and the cancellation of membership.
- (3) A 2/3 majority shall be required at an AGM for a change to any provision of this constitution.
- (4) More than 50% of the total members shall be present at the AGM for a valid voting result.
- (7) Only members in good standing shall be entitled to vote at any meeting of the Federation.

ARTICLE 22

Annual Report/Financial Account

- (1) The annual report and financial statement shall be presented by the Board through the President of the Secretariat within a period of three (3) months following the previous Federations financial year, unless an extension of this period is granted by the AGM.
- (2) The President and his accounting staff shall employ and maintain standard accounting
 - (1) Practices.
 - (2) The Federation shall appoint through the Board of directors a reputable accounting firm to audit the annual financial statement of the Federation.
 - (3) The auditors shall present their audit report at the next AGM of the Federation
 - (4) The annual report and financial statement shall be kept by the Federation for at least 10 years after publication.
 - (5) If the annual report and/or statement of account are rejected by a simple majority vote of the members present at the AGM, then the AGM shall take any action or decision required solely in the interest of the Federation.

ARTICLE 23

Complaints

- (1) A member aggrieved by a decision or action taken by the Secretariat may petition the board through the Chairman.
- (2) The board shall within five (5) working days of receiving such a complaint refer the issue to a standing Committee of the board to investigate.
- (3) The board shall determine the terms of reference of the Committee, and the period within which it should conclude its work but in any case, not later than fourteen (14) working days.
- (4) Any other complaints shall be received by the Secretariat which shall within ten (10) working days respond to it or refer same to a standing committee and the board.

ARTICLE 24

Disciplinary Committee

- (1) There shall be a Disciplinary Committee made up of five members, one of whom shall act as its Chairman.
- (2) The members of the committee shall be elected at an AGM for a period of one Federation year.
- (3) The functions of the Disciplinary Committee shall include:
 - a) Adjudicating matters referred to it by a member, members or the Secretariat in accordance with law and rules of natural justice.
 - b) Making recommendations for sanctions against members against whom adverse findings have been made.
 - c) Sitting at times and hours required for the work of the committee to be complete.
 - d) Sending reports of its findings and recommendations to the Board of Directors through the Secretariat.
- (4) It shall be tantamount to indiscipline for a member to:
 - a) Be in default of annual dues payment and other financial obligations to the Federation.
 - b) Do anything in contravention of this constitution, resolution or decisions taken at AGM.
 - c) Make public statements purporting to represent the interest of the Federation without authorization from the board.
- (5) The jurisdiction of the Disciplinary Committee shall be invoked when a complaint is received in written form from any member or upon a referral from the board.

ARTICLE 25

Conflict Resolution

- (1) All members shall commit to a peaceful resolution of all conflicts which may arise in the course of doing business through or with the Federation from time to time.
- (2) Any member aggrieved by the conduct of another member and who is unable to resolve it by negotiation shall resolve it by mediation.
- (3) The Secretariat, upon receiving a grievance from a member shall assist the parties to appoint a mediator.
- (4) The mediator so appointed shall together with the parties employ their best efforts to resolve the dispute within four weeks (4) weeks.

- (5) If the parties are unable to settle the dispute by mediation, the dispute shall finally be settled by arbitration under the institutional rules of the Ghana Arbitration Centre.
- (6) The parties shall appoint an arbitrator each and the Secretariat in consultation with the two arbitrators shall appoint a chairman to settle the dispute.

ARTICLE 26

Constitutional Amendments

- (1) No provision of this constitution shall be amended except by a 2/3 majority vote of an AGM specially convened for that purpose.
- (2) Written proposals for constitutional amendments shall come from members only and such written proposals shall be sent to the Secretariat which, in consultation with the Board, shall fix a date for an AGM to discuss the proposed amendments.
- (3) All valid amendment proposals shall be considered within a reasonable time period provided always that;
 - (a) The amendment proposer and all members in support are in good standing;
 - (b) The proposed amendment shall not take effect retroactively;
- (4) Constitutional amendments endorsed by an AGM become effective immediately.

ARTICLE 27

Corporate Seal

- (1) The corporate seal shall contain the registered name and the year of establishment of the Federation. .
- (2) All official documents and communications of the Federation shall bear the corporate seal.

ARTICLE 28

Interpretation

- (1) The provisions of this constitution shall be interpreted in accordance with the objectives and mission of the Federation and the Interpretation Act, 2009 (Act 792).

ARTICLE 29

Duration & Dissolution

- (1) The Federation is established for an unspecified time.
- (2) The Federation year shall run each year from the 1st of January to December 31st, except that where reporting obligations are imposed on an officer or organ, such reporting obligations may be deemed validly performed within 3 months after the Federation year ends.